

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index #:

- - - - -X
KENYATTA MORRIS, KURT CHANGE and
OWEN DWYER

SUMMONS

Plaintiffs,

-against-

BASIS OF VENUE
WHERE THE CAUSE OF
ACTION OCCURRED

THE CITY OF NEW YORK, SARGENT ALAN CHAU
P.O. MIGUEL VANBRANKLE, AND UNIDENTIFIED
OFFICERS "JOHN DOES" and "JANE DOES" 1-15"
NAMES FICTITIOUS TRUE NAMES UNKNOWN INTENDED
TO DESIGNATE POLICE OFFICERS/DETECTIVES OF
THE 67TH COMMAND AT TIMES AND PLACES ALLEGED,

PLAINTIFF
KENYATTA MORRIS
RESIDES AT
149 East 35th St,
Apt.1
Brooklyn, NY

Defendants.

- - - - -X
S I R S:

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this
action and to serve a copy of your answer or if the complaint is
not served with this summons, to serve a notice of appearance on
the Plaintiff's attorneys within 20 days after the service of
this summons, exclusive of the day of service (or within 30 days
after the service is complete if this summons is not personally
delivered to you within the State of New York); and in case of
your failure to appear or answer, judgment will be taken against
you by default for the relief demanded herein.

Dated: New York, New York
February 21, 2019



MICHAEL B. PALILLO, P.C.
Attorneys for Plaintiff
277 Broadway, Suite 501
New York, New York 10007-2001
(212) 608-8959

Defendants' Addresses:

THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK NEW YORK

SARGENT ALAN CHAU
C/O 67th Pct
2820 SNYDER AVENUE BROOKLYN NEW YORK

P.O. MIGUEL VANBRANKLE,
C/O 67th Pct.
2820 SNYDER AVENUE BROOKLYN NEW YORK

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

- - - - -X
KENYATTA MORRIS, KURT CHANGE and
OWEN DWYER

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, SARGENT ALAN CHAU
P.O. MIGUEL VANBRANKLE, AND UNIDENTIFIED
OFFICERS "JOHN DOES" and "JANE DOES" 1-15"
NAMES FICTITIOUS TRUE NAMES UNKNOWN
INTENDED TO DESIGNATE POLICE
OFFICERS/DETECTIVES OF THE 67TH
COMMAND AT TIMES AND PLACES
ALLEGED,

Defendants.

- - - - -X
S I R S:

Plaintiffs, KENYATTA MORRIS, KURT CHANGE and
OWEN DWYER by their attorney, MICHAEL B. PALILLO, ESQ.,
complaining of the Defendants herein, alleges upon information
and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KENYATTA MORRIS

1. That this is an action for money damages to redress
deprivation by Defendants of the rights secured to the
Plaintiffs under the Constitution and Laws of the United States
of America and the State of New York. The Defendants
unreasonably seized the person of Plaintiff KENYATTA MORRIS,
committed assault, batter, subjected her to degrading and

humiliating searches and her body without a warrant, arrested her, held her against her will, false imprisoned her all without probable cause.

2. That at all times herein mentioned, Plaintiff KENYATTA MORRIS was and still is a resident of the State of New York, County of Kings, United States of America.

3. That at all times mentioned herein, THE CITY OF NEW YORK, hereinafter "CITY" was and still is a municipal Corporation existing and organized by virtue of the Laws of the State of New York.

4. At all times mentioned herein, THE NEW YORK CITY POLICE DEPARTMENT, hereinafter "NYCPD", was and still is a Department and/or agency of the CITY OF NEW YORK and operates under its supervision, management and control.

5. That at all dates and times hereinafter mentioned, Sargent ALAN CHAU, was assigned to the 67nd pct. and acted within the scope of his employment.

6. That at all dates and times hereinafter mentioned Police Officer MIGUEL VANBRANKLE was assigned to the 67nd pct. and acted within the scope of his employment.

7. That at all dates and times hereinafter mentioned, police officers, "JOHN DOE" and "JANE DOE" numbered "1-15" names fictitious true names unknown but intended to be designated

police officers at the time and place of this occurrence were employees of the "NYCPD", and in particular the 67th pct. and acted within the scope of their employment as such.

8. That a Notice of Claim was duly presented to the City of New York Office of the Comptroller of the City of New York on behalf of KENYATTA MORRIS on the 14nd th day of June 2018 which was within ninety (90) days of the cause of action accrued herein.

9. That the CITY has demanded a hearing, pursuant to §50-H of the General Municipal Law, and a hearing was held on January 16, 2019 . Said claim has been presented for adjustment/payment and no adjustment or payment has been had. This action has been brought within one year and ninety (90) days of the happening of the event complained of.

10. That at all times herein mentioned, the Defendants were acting under color of law, that is, under color of the Constitution, statutes, laws, rules, regulations, customs and usages of the City and State of New York.

11. That at all times herein mentioned, the Defendants, and each of them, separately and in concert with each other engaged in acts and omissions which constituted deprivation of the rights, privileges and immunities of the Plaintiffs and while these acts were carried out under color of

law, they had no justification or excuse in law, and were instead gratuitous, illegal, improper and unrelated to any activity in which law enforcement officers may appropriately and legally engage in the course of protecting persons and property or insuring Civil order.

12. That at all times mentioned herein, each of the Defendants had the power and duty to restrain the other Defendants and prevent them from violating the law and rights of the Plaintiff, KENYATTA MORRIS but that each of the Defendants failed and refused to perform that duty, failed and refused to restrain the other Defendants, and thereby became party to the injuries inflicted upon Plaintiff.

13. That at all dates and times hereinafter mentioned, the Plaintiff, KENYATTA MORRIS was lawfully inside the basement of the premises 243 East 51st Street, County of Kings, State of New York.

14. On or about Friday March 24, 2018 at approximately 1:00 a.m. Sargent ALAN CHAU, police officer MIGUEL VANBRANKLE of the 67nd pct. and unidentified police officers "1-15" "JOHN DOES" and "JANE DOES" name fictitious true name unknown intended to be police officers designated at the above premises and without conducting an investigation into the validity of any complaint or alleged investigation, falsely arrested and

unlawfully imprisoned Plaintiff, KENYATTA MORRIS.

15. That on the aforementioned date, Plaintiff, KENYATTA MORRIS, was inside the aforementioned basement with a glass in her hand.

16. Suddenly Sargent ALAN CHAU placed both of his hands on KENYATTA MORRIS, grabbed her by the shirt, arm and hair, violently swung her around pulling and dragging her all while she was holding the glass in her hand.

17. KENYATTA MORRIS was placed in handcuffs and arrested and unlawfully imprisoned by the agents, servants and/or employees of the CITY OF NEW YORK, the "NYPD" and in particular Sargent ALAN CHAU , police officer MIGUEL VANBRANKLE and other officer of the 67nd Pct. identified as "JOHN DOE" and "JANE DOES" "1-15" names fictitious, true names unknown but intended to be police officers in front of the aforementioned premises making this arrest.

18. At the aforementioned date, time and place, KENYATTA MORRIS was falsely arrested and unlawful imprisoned by the agents servants and /or employers of the N.Y.C. Police Department, including but not limited to Sargent ALAN CHAU police officer MIGUEL VANBRANKLE when she was placed in hand cuffs and arrested, held in front of 243 East 51st Street, Brooklyn New York for approximately thirty (30) minutes, placed

in a NYPD van where she was held in handcuffs for an additional thirty (30) minutes, driven to the 67th pct in handcuffs which took approximately 15-20 minutes, photographed, fingerprinted, placed in a holding cell until approximately 11:00 PM, when she was again placed into a NYPD van and driven to central booking which took approximately 10 minutes, and at approximately 11:30 PM she appeared before a Criminal Court Judge and charged with:

PL 195.05 OBSTRUCTION OF GOVERNMENTAL ADMINISTRATION 2

PL 205.30 RESISTING ARREST

PL 265.01 (2) CRIMINAL POSSESSION OF A WEAPON 4

19. At no time did KENYATTA MORRIS resist or attempt to resist the officers attempts to place handcuffs on her, the officers placing her into a NYPD van, or the officers transporting her to the 67th pct., placing her into custody and/or arresting her.

20. KENYATTA MORRIS was aware of her confinement, did not consent to her confinement, the placing of hands onto her person, being searched and handcuffed and her arrest was not otherwise privileged.

21. Upon information and belief, no facts existed which would give rise to an inference that KENYATTA MORRIS committed the crimes she was charged or that KENYATTA MORRIS should have been arrested.

22. KENYATTA MORRIS was required to appear in the Criminal Court Kings County on the following dates:

March 25/26, 2018 arraignment

April 26, 2018

June 12, 2018

July 30, 2018

August 24, 2018

September 26, 2018

October 24, 2018

November 1, 2018

23. On November 1, 2018, KENYATTA MORRIS, accepted a disorderly conduct with an immediate dismissal of all charges against KENYATTA MORRIS were dismissed and the record sealed.

24. The injuries KENYATTA MORRIS was caused to endure, included but are not limited to scorn and ridicule by being placed in handcuffs, paraded in handcuffs, assaulted, subject to battery, having hands placed on her body without her consent, falsely arrested as well serious injuries the full extent of which are not fully known due to her unlawful imprisonment and false arrest.

25. That due to the actions of the CITY OF NEW YORK and the "NYPD", their agents, servants and/or employees including but not limited to Sgt. ALAN CHAU, Police Officer

MIGUEL VANBRANKLE and officers "JOHN DOE" and "JANE DOES" "1-15" of the 67th pct. KENYATTA MORRIS suffered serious physical injuries, injuries to her wrists due to handcuffs which were closed too tight, stress upon her physical system, psychological/emotional injury and anxiety, for which THE CITY OF NEW YORK refused to adjust upon repeated requests to do so and damages the full extent of which is not known at this time,, for which he was required to and will be required to seek health care in the future.

26. That at the aforementioned date, time and place the agents, servants and/or employees of the CITY and NYCPD, as previously set forth, without just cause or provocation, intentionally and maliciously assaulted, threatened, pushed and shoved the Plaintiff KENYATTA MORRIS.

27. The aforesaid searches, detention and arrest of Plaintiff, KENYATTA MORRIS constituted unreasonable and excessive force by the CITY and NYCPD as identified above.

28. Plaintiff KENYATTA MORRIS was deprived of her freedom for a substantial period of time, suffered severe emotional trauma and injury, was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer from mental and emotional distress as a result of the aforesaid unlawful conduct of the Defendants and

has been caused to fear repetition of the unlawful conduct by the Defendants or by other police officers.

29. In the manner aforesaid, each of the Defendants, jointly and severally, acted maliciously, willfully and wantonly, and outside the scope of their jurisdiction, although under color of law, violated the following rights of the Plaintiff KENYATTA MORRIS:

- A) To be free from unreasonable search and seizure;
- B) To be free from search and seizure without probable cause;
- C) To be free from unlawful detainment and arrest;
- D) To be free from assault and battery;
- E) To be free from negligence in the performance of police duties;
- F) To be free from summary punishment without trial;
- G) Due process of law.

30. All of these rights are secured to the Plaintiff KENYATTA MORRIS by the provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and by 42 U.S.C. Sections 1983 and 1988, and by the Statutes and

Laws of the State of New York which are invoked under the jurisdiction of this Court.

31. That solely by reason of all the foregoing, Plaintiff KENYATTA MORRIS and has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, KENYATTA MORRIS

32. Plaintiff KENYATTA MORRIS, repeats, reiterates and realleges each and every allegation previously set forth herein with the same force and effect as though each were fully set forth at length herein.

33. Upon information and belief that at the aforesaid time and place, Plaintiff, KENYATTA MORRIS, was assaulted, subject to a batter, had both hands placed on her by the Defendants herein, without the consent of the Plaintiff KENYATTA MORRIS.

34. That Plaintiff, KENYATTA MORRIS, in no way instigated, caused or contributed to the complained of conduct.

35. That as a result of the assault the Plaintiff, KENYATTA MORRIS suffered, her health was impaired, she was caused to endure scorn and ridicule by being taken in handcuffs on a public sidewalk. Plaintiff KENYATTA MORRIS suffered great

mental distress and humiliation, her reputation and character were injured and she was embarrassed.

36. That solely by reason of all the foregoing Plaintiff, KENYATTA MORRIS has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, KENYATTA MORRIS

37. Plaintiff KENYATTA MORRIS repeats, reiterates and realleges each and every allegation with the same force and effect as though each were fully set forth at length herein.

38. That the Defendants intentionally and for the purpose of causing severe mental distress conducted themselves toward the Plaintiff in a manner so outrageous and shocking that it exceeded all reasonable bounds of decency.

39. That the "CITY OF NEW YORK" and "NYPD" recklessly conducted themselves toward the Plaintiff in a manner so outrageous and shocking that it exceeded all reasonable bounds of decency.

40. That solely by reason of the foregoing the Plaintiff KENYATTA MORRIS has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, KENYATTA MORRIS

41. Plaintiff KENYATTA MORRIS repeats, reiterates and and reallege each and every allegation with the same force and effect as though each were fully set forth at length herein

42. That at all dates and times hereinafter mentioned the CITY OF NEW YORK and "NYPD" were charged with the duty to perform their job functions in a reasonably safe manner.

43. That at all dates and times hereinafter mentioned the CITY OF NEW YORK and "NYPD" instructed and educated their law enforcement personnel on how to perform their job functions.

44. That at all dates and times hereinafter mentioned Sargent ALAN CHAU, police officer MIGUEL VANBRANKLE as well as officers "JOHN DOE" and "JANE DOE" of the 67th pct did not perform their job duties in a reasonable same manner.

45. That at all dates and times hereinafter mentioned the CITY OF NEW YORK and "NYPD" ,Sargent ALAN CHAU, police officer MIGUEL VANBRANKLE as well as officers "JOHN DOE" and "JANE DOE" of the 67th pct their agents servants and/or employees, including but not limited to were negligent, careless and reckless in the performance of their job duties.

46. That solely by reason of the foregoing the Plaintiff KENYATTA MORRIS has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF KURT CHANG

47. That this is an action for money damages to redress deprivation by Defendants of the rights secured to the Plaintiff KURT CHANG under the Constitution and Laws of the United States of America and the State of New York. The Defendants unreasonably seized the person of Plaintiff , committed assault, battery, subjected him to degrading and humiliating searches of his body without a warrant, arrested her, held against his will, false imprisoned her all without probable cause.

48. That at all times herein mentioned, Plaintiff KURT_CHANG was and still is a resident of the State of New York, County of Kings, United States of America.

49. That at all times mentioned herein, THE CITY OF NEW YORK, hereinafter "CITY" was and still is a municipal Corporation existing and organized by virtue of the Laws of the State of New York.

50. At all times mentioned herein, THE NEW YORK CITY POLICE DEPARTMENT, hereinafter "NYCPD", was and still is a Department and/or agency of the CITY OF NEW YORK and operates under its supervision, management and control.

51. That at all dates and times hereinafter mentioned, Sargent ALAN CHAU, was assigned to the 67nd pct. and acted within the scope of his employment.

52. That at all dates and times hereinafter mentioned Police Officer MIGUEL VANBRANKLE was assigned to the 67nd pct. and acted within the scope of his employment.

53. That at all dates and times hereinafter mentioned, police officers, "JOHN DOE" and "JANE DOE" numbered "1-15" names fictitious true names unknown but intended to be designated police officers at the time and place of this occurrence were employees of the "NYCPD", and in particular the 67th pct. and acted within the scope of their employment as such.

54. That a Notice of Claim was duly presented to the City of New York Office of the Comptroller of the City of New York on behalf of KURT CHANG on the 14nd th day of June 2018 which was within ninety (90) days of the cause of action accrued herein.

55. That the CITY has demanded a hearing, pursuant to §50-H of the General Municipal Law, and a hearing was held on October 18, 2018 . Said claim has been presented for adjustment/payment and no adjustment or payment has been had. This action has been brought within one year and ninety (90) days of the happening of the event complained of.

56. That at all times herein mentioned, the Defendants were acting under color of law, that is, under color of the Constitution, statutes, laws, rules, regulations, customs and usages of the City and State of New York.

57. That at all times herein mentioned, the Defendants, and each of them, separately and in concert with each other engaged in acts and omissions which constituted deprivation of the rights, privileges and immunities of the Plaintiff KURT CHANG and while these acts were carried out under color of law, they had no justification or excuse in law, and were instead gratuitous, illegal, improper and unrelated to any activity in which law enforcement officers may appropriately and legally engage in the course of protecting persons and property or insuring Civil order.

58. That at all times mentioned herein, each of the Defendants had the power and duty to restrain the other Defendants and prevent them from violating the law and rights of

the Plaintiff, KURT CHANG but that each of the Defendants failed and refused to perform that duty, failed and refused to restrain the other Defendants, and thereby became party to the injuries inflicted upon Plaintiff.

59. That at all dates and times hereinafter mentioned, the Plaintiff, KURT CHANG was lawfully inside the basement of the premises 243 East 51st Street, County of Kings, State of New York.

60. On or about Saturday March 24, 2018 at approximately 1:00 a.m. Sargent ALAN CHAU, police officer MIGUEL VANBRANKLE of the 67nd pct. and unidentified police officers "1-15" "JOHN DOES" and "JANE DOES" name fictitious true name unknown intended to be police officers designated at the above premises and without conducting an investigation into the validity of any complaint or alleged investigation, falsely arrested and unlawfully imprisoned Plaintiff, KURT CHANG.

61. That on the aforementioned date, Plaintiff, KURT CHANG, while inside the aforementioned basement, while standing next to a wall, a fight broke out not involving KURT CHANG and the officers of the NYPD were yelling put the lights on. KURT CHANG followed the direction of the officers and was about to put the lights on when he was grabbed by three or four

NYPD officers, wrestled to the ground wherein handcuffs were placed on him.

62. KURT CHANG was placed in handcuffs and arrested and unlawfully imprisoned by the agents, servants and/or employees of the CITY OF NEW YORK, the "NYPD" and in particular Sargent ALAN CHAU , police officer MIGUEL VANBRANKLE and other officer of the 67nd Pct. identified as "JOHN DOE" and "JANE DOES" "1-15" names fictitious, true names unknown but intended to be police officers in front of the aforementioned premises making this arrest.

63. At the aforementioned date, time and place, KURT CHANG was falsely arrested and unlawful imprisoned by the agents servants and /or employers of the N.Y.C. Police Department, including but not limited to Sargent ALAN CHAU police officer MIGUEL VANBRANKLE.

64. KURT CHANG was held in the basement for approximately 15-20 minutes, brought out onto the sidewalk in front of 243 East 51st Street Brooklyn New York in handcuffs for approximately 10-15 minutes. He was placed in a NYPD vehicle where he was held in handcuffs behind his back for approximately 30 minutes. He was then driven to the 67th Pct in handcuffs which took about 15-20 minutes. He was photographed, fingerprinted and

placed in a holding cell at the 67th Pct. until approximately 11:00 PM when he was again placed into a police van and driven to Central Booking which took approximately 10 minutes. At approximately 11:30 PM he appeared before a Criminal Court Judge where he was charged with:

PL 195.05 OBSTRUCTING GOVERNMENTAL ADMINISTRATION 2

AC 20-453 UNLICENSED GENERAL VENDOR

ABC 100-(1) SALE OF ALCOHOL WITHOUT A LICENSE

ABC 114(6) FAILURE TO DISPLAY NEW YORK STATE LIQUOR LICENSE

ABC 64(B) UNLICENSED BOTTLE CLUB

ABC 96(1) STORING OF ALCOHOLIC BEVERAGES

and released without bail.

65. At no time did KURT CHANG resist or attempt to resist the officers attempts to place handcuffs on him, the officers placing him into a NYPD van, or the officers transporting him to the 67th pct., placing him into custody and/or arresting him.

66. KURT CHANG was aware of his confinement, did not consent to his confinement, the placing of hands onto him person, being searched and handcuffed and his arrest was not otherwise privileged.

67. Upon information and belief, no facts existed which would give rise to an inference that KURT CHANG committed the crimes she was charged or that KURT CHANG should have been arrested.

68. KURT CHANG was required to appear in the Criminal Court Kings County on the following dates:

March 25/26, 2018 arraignment

June 12, 2018

69. On June 12, 2018, KURT CHANG accepted and adjournment contemplating dismissal in full satisfaction of all charges the charges and thereafter the case was dismissed and the record sealed.

70. The injuries KURT CHANG was caused to endure, included but are not limited to scorn and ridicule by being placed in handcuffs, paraded in handcuffs, assaulted, subject to battery, having hands placed on his body without his consent, falsely arrested as well serious injuries the full extent of which are not fully known due to his unlawful imprisonment and false arrest.

71. That due to the actions of the CITY OF NEW YORK and the "NYPD", their agents, servants and/or employees including but not limited to Sgt. ALAN CHAU, Police Officer MIGUEL VANBRANKLE and officers "JOHN DOE" and "JANE DOES" "1-15"

of the 67th pct. suffered serious physical injuries, stress upon his physical system, psychological/emotional injury and anxiety, for which THE CITY OF NEW YORK refused to adjust upon repeated requests to do so and damages the full extent of which are not known at this time, and upon information and belief, for which KURT CHANG was required to and will be required to seek health care in the future.

72. That at the aforementioned date, time and place the agents, servants and/or employees of the CITY and NYCPD, as previously set forth, without just cause or provocation, intentionally and maliciously assaulted, threatened, pushed and shoved the Plaintiff KURT CHANG.

73. The aforesaid searches, detention and arrest of Plaintiff, KURT CHANG constituted unreasonable and excessive force by the CITY and NYCPD as identified above.

74. Plaintiff KURT CHANG was deprived of his freedom for a substantial period of time, suffered severe emotional trauma and injury, was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer from mental and emotional distress as a result of the aforesaid unlawful conduct of the Defendants and has been caused to fear repetition of the unlawful conduct by the Defendants or by other police officers.

75. In the manner aforesaid, each of the Defendants, jointly and severally, acted maliciously, willfully and wantonly, and outside the scope of their jurisdiction, although under color of law, violated the following rights of the Plaintiff KURT CHANG:

- A) To be free from unreasonable search and seizure;
- B) To be free from search and seizure without probable cause;
- C) To be free from unlawful detainment and arrest;
- D) To be free from assault and battery;
- E) To be free from negligence in the performance of police duties;
- F) To be free from summary punishment without trial;
- G) Due process of law.

76. All of these rights are secured to the Plaintiff KURT CHANG by the provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and by 42 U.S.C. Sections 1983 and 1988, and by the Statutes and Laws of the State of New York which are invoked under the jurisdiction of this Court.

77. That solely by reason of all the foregoing, Plaintiff KURT CHANG and has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, KURT CHANG

78. Plaintiff KURT CHANG, repeats, reiterates and realleges each and every allegation previously set forth herein with the same force and effect as though each were fully set forth at length herein.

79. Upon information and belief that at the aforesaid time and place, Plaintiff, KURT CHANG, was assaulted, subject to a batter, had both hands placed on him by the Defendants herein, without the consent of the Plaintiff KURT CHANG.

80. That Plaintiff, KURT CHANG, in no way instigated, caused or contributed to the complained of conduct.

81. That as a result of the assault the Plaintiff, KURT CHANG suffered, his health was impaired, he was caused to endure scorn and ridicule by being taken in handcuffs on a public sidewalk. Plaintiff KURT CHANG suffered great mental distress and humiliation, his reputation and character were injured and she was embarrassed.

82. That solely by reason of all the foregoing Plaintiff, KURT CHANG has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, KURT CHANG**

83. Plaintiff repeat, reiterate and reallege each and every allegation with the same force and effect as though each were fully set forth at length herein.

84. That the Defendants intentionally and for the purpose of causing severe mental distress conducted themselves toward the Plaintiff KURT CHANG in a manner so outrageous and shocking that it exceeded all reasonable bounds of decency.

85. That the "CITY OF NEW YORK" and "NYPD" recklessly conducted themselves toward the Plaintiff in a manner so outrageous and shocking that it exceeded all reasonable bounds of decency.

86. That solely by reason of the foregoing the Plaintiff KURT CHANG has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, KURT CHANG

87. Plaintiff KURT CHANG repeat, reiterate and reallege each and every allegation with the same force and effect as though each were fully set forth at length herein

88. That at all dates and times hereinafter mentioned the CITY OF NEW YORK and "NYPD" were charged with the duty to perform their job functions in a reasonably safe manner.

89. That at all dates and times hereinafter mentioned the CITY OF NEW YORK and "NYPD" instructed and educated their law enforcement personnel on how to perform their job functions.

90. That at all dates and times hereinafter mentioned Sargent ALAN CHAU, police officer MIGUEL VANBRANKLE as well as officers "JOHN DOE" and "JANE DOE" of the 67th pct did not perform their job duties in a reasonable same manner.

91. That at all dates and times hereinafter mentioned the CITY OF NEW YORK and "NYPD", Sargent ALAN CHAU, police officer MIGUEL VANBRANKLE as well as officers "JOHN DOE" and "JANE DOE" of the 67th pct their agents servants and/or employees, including but not limited to were negligent, careless and reckless in the performance of their job duties.

92. That solely by reason of the foregoing the Plaintiff KURT CHANG has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF OWEN DWYER

93. That this is an action for money damages to redress deprivation by Defendants of the rights secured to the Plaintiffs under the Constitution and Laws of the United States of America and the State of New York. The Defendants unreasonably seized the person of Plaintiff OWEN DWYER, committed assault, batter, subjected him to degrading and humiliating searches and his body without a warrant, arrested him, held him against his will, false imprisoned him all without probable cause.

94. That at all times herein mentioned, Plaintiff OWEN DWYER was and still is a resident of the State of New York, County of Kings, United States of America.

95. That at all times mentioned herein, THE CITY OF NEW YORK, hereinafter "CITY" was and still is a municipal Corporation existing and organized by virtue of the Laws of the State of New York.

96. At all times mentioned herein, THE NEW YORK CITY POLICE DEPARTMENT, hereinafter "NYCPD", was and still is a Department and/or agency of the CITY OF NEW YORK and operates under its supervision, management and control.

97. That at all dates and times hereinafter mentioned, Sargent ALAN CHAU, was assigned to the 67nd pct. and acted within the scope of his employment.

98. That at all dates and times hereinafter mentioned Police Officer MIGUEL VANBRANKLE was assigned to the 67nd pct. and acted within the scope of his employment.

99. That at all dates and times hereinafter mentioned, police officers, "JOHN DOE" and "JANE DOE" numbered "1-15" names fictitious true names unknown but intended to be designated police officers at the time and place of this occurrence were employees of the "NYCPD", and in particular the 67th pct. and acted within the scope of their employment as such.

100. That a Notice of Claim was duly presented to the City of New York Office of the Comptroller of the City of New York on behalf of OWEN DWYER on the 14nd th day of June 2018 which was within ninety (90) days of the cause of action accrued herein.

101. That the CITY has demanded a hearing, pursuant to §50-H of the General Municipal Law, and a hearing was held on October 18, 2018. Said claim has been presented for adjustment/payment and no adjustment or payment has been had. This action has been brought within one year and ninety (90) days of the happening of the event complained of.

102. That at all times herein mentioned, the Defendants were acting under color of law, that is, under color of the Constitution, statutes, laws, rules, regulations, customs and usages of the City and State of New York.

103. That at all times herein mentioned, the Defendants, and each of them, separately and in concert with each other engaged in acts and omissions which constituted deprivation of the rights, privileges and immunities of the Plaintiffs and while these acts were carried out under color of law, they had no justification or excuse in law, and were instead gratuitous, illegal, improper and unrelated to any activity in which law enforcement officers may appropriately and legally engage in the course of protecting persons and property or insuring Civil order.

104. That at all times mentioned herein, each of the Defendants had the power and duty to restrain the other Defendants and prevent them from violating the law and rights of

the Plaintiff, OWEN DWYER but that each of the Defendants failed and refused to perform that duty, failed and refused to restrain the other Defendants, and thereby became party to the injuries inflicted upon Plaintiff.

105. That at all dates and times hereinafter mentioned, the Plaintiff, OWEN DWYER was lawfully outside the premises 243 East 51st Street, County of Kings, State of New York.

106. On or about Friday March 24, 2018 at approximately 1:00 a.m. Sargent ALAN CHAU, police officer MIGUEL VANBRANKLE of the 67nd pct. and unidentified police officers "1-15" "JOHN DOES" and "JANE DOES" name fictitious true name unknown intended to be police officers designated at the above premises and without conducting an investigation into the validity of any complaint or alleged investigation, falsely arrested and unlawfully imprisoned Plaintiff, OWEN DWYER

107. That on the aforementioned date, Plaintiff, OWEN DWYER, was standing outside the above premises.

108. Suddenly Defendants interrogated the OWEN DWYER, searched him, placed their hands on him placed hands on him an arrested him, all while standing outside the above premises.

109. OWEN DWYER was placed in handcuffs and arrested and unlawfully imprisoned by the agents, servants and/or employees of the CITY OF NEW YORK, the "NYPD" and in particular Sargent ALAN CHAU , police officer MIGUEL VANBRANKLE and other officer of the 67nd Pct. identified as "JOHN DOE" and "JANE DOES" "1-15" names fictitious, true names unknown but intended to be police officers in front of the aforementioned premises making this arrest.

110. At the aforementioned date, time and place, OWEN DWYER was falsely arrested and unlawful imprisoned by the agents servants and /or employers of the N.Y.C. Police Department, including but not limited to Sargent ALAN CHAU police officer MIGUEL VANBRANKLE when she was placed in hand cuffs and arrested, held in front of 243 East 51st Street, Brooklyn New York for approximately thirty (30) minutes, placed in a NYPD van where he was held in handcuffs for an additional thirty (30) minutes, driven to the 67th pct in handcuffs which took approximately 15-20 minutes, photographed, fingerprinted, placed in a holding cell until approximately 11:00 PM, when he was again placed into a NYPD van and driven to central booking which took approximately 10 minutes, and at approximately 11:30

PM he appeared before a Criminal Court Judge and charged with:

PL 195.05 OBSTRUCTION OF GOVERNMENTAL ADMINISTRATION 2

AC 20-453 UNLICENSED GENERAL VENDOR

ABC 110(1) UNLICENSED GENERAL VENDOR

ABC 114(6) SALE OF ALCOHOL WITHOUT A LICENSE

ABC 64(B) UNLICENSED BOTTLE CLUB

ABC 96 (1) STORING OF ALCOHOLIC BEVERAGES

PL 265.01 (2) CRIMINAL POSSESSION OF A WEAPON 4

111. At no time did OWEN DWYER resist or attempt to resist the officers attempts to place handcuffs on him the officers placing him into a NYPD van, or the officers transporting him to the 67th pct., placing him into custody and/or arresting him.

112. OWEN DWYER was aware of his confinement, did not consent to hi confinement, the placing of hands onto hi person, being searched and handcuffed and his arrest was not otherwise privileged.

113. Upon information and belief, no facts existed which would give rise to an inference that OWEN DWYER committed the crimes she was charged or that OWEN DWYER should have been arrested.

114. OWEN DWYER was required to appear in the Criminal Court Kings County on the following dates in AP6:

March 25/26, 2018 arraignment

April 26, 2018

June 12, 2018

July 30, 2018

August 24, 2018

September 26, 2018

115. On September 26, 2018, OWEN DWYER accepted an adjournment contemplating dismissal in satisfaction of all charges against him and thereafter the charges against OWEN DWYER were dismissed and the record sealed.

116. The injuries OWEN DWYER was caused to endure, included but are not limited to scorn and ridicule by being placed in handcuffs, paraded in handcuffs, assaulted, subject to battery, having hands placed on his body without his consent, falsely arrested as well serious injuries the full extent of which are not fully known due to his unlawful imprisonment and false arrest.

117. That due to the actions of the CITY OF NEW YORK and the "NYPD", their agents, servants and/or employees including but not limited to Sgt. ALAN CHAU, Police Officer MIGUEL VANBRANKLE and officers "JOHN DOE" and "JANE DOES" "1-15"

of the 67th pct. OWEN DWYER suffered serious physical injuries, injuries, stress upon his physical system, psychological and emotional injury and anxiety, for which THE CITY OF NEW YORK refused to adjust upon repeated requests to do so and damages the full extent of which is not known at this time,, for which he was required to and will be required to seek health care in the future.

118. That at the aforementioned date, time and place the agents, servants and/or employees of the CITY and NYCPD, as previously set forth, without just cause or provocation, intentionally and maliciously assaulted, threatened, pushed and shoved the Plaintiff KENYATTA MORRIS.

119. The aforesaid searches, detention and arrest of Plaintiff, OWEN DWYER constituted unreasonable and excessive force by the CITY and NYCPD as identified above.

120. Plaintiff OWEN DWYER was deprived of is freedom for a substantial period of time, suffered severe emotional trauma and injury, was subjected to great fear and terror and personal humiliation and degradation, and has continued to suffer from mental and emotional distress as a result of the aforesaid unlawful conduct of the Defendants and has been caused to fear repetition of the unlawful conduct by the Defendants or by other police officers.

121. In the manner aforesaid, each of the Defendants, jointly and severally, acted maliciously, willfully and wantonly, and outside the scope of their jurisdiction, although under color of law, violated the following rights of the Plaintiff OWEN DWYER:

- A) To be free from unreasonable search and seizure;
- B) To be free from search and seizure without probable cause;
- C) To be free from unlawful detainment and arrest;
- D) To be free from assault and battery;
- E) To be free from negligence in the performance of police duties;
- F) To be free from summary punishment without trial;
- G) Due process of law.

122. All of these rights are secured to the Plaintiff OWEN DWYER by the provisions of the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and by 42 U.S.C. Sections 1983 and 1988, and by the Statutes and Laws of the State of New York which are invoked under the jurisdiction of this Court.

123. That solely by reason of all the foregoing, Plaintiff OWEN DWYER and has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, OWEN DWYER

124. Plaintiffs, repeat, reiterate and reallege each and every allegation previously set forth herein with the same force and effect as though each were fully set forth at length herein.

125. Upon information and belief that at the aforesaid time and place, Plaintiff, OWEN DWYER was assaulted, subject to a battery, had both hands placed on him by the Defendants herein, without the consent of the Plaintiff OWEN DWYER.

126. That Plaintiff, OWEN DWYER, in no way instigated, caused or contributed to the complained of conduct.

127. That as a result of the assault the Plaintiff, OWEN DWYER suffered, his health was impaired, she was caused to endure scorn and ridicule by being taken in handcuffs on a public sidewalk. Plaintiff OWEN DWYER suffered great mental distress and humiliation, his reputation and character were injured and he was embarrassed.

128. That solely by reason of all the foregoing Plaintiff, OWEN DWYER has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, OWEN DWYER

129. Plaintiffs repeat, reiterate and reallege each and every allegation with the same force and effect as though each were fully set forth at length herein.

103. That the Defendants intentionally and for the purpose of causing severe mental distress conducted themselves toward the Plaintiff in a manner so outrageous and shocking that it exceeded all reasonable bounds of decency.

131. That the "CITY OF NEW YORK" and "NYPD" recklessly conducted themselves toward the Plaintiff in a manner so outrageous and shocking that it exceeded all reasonable bounds of decency.

132. That solely by reason of the foregoing the Plaintiff OWEN DWYER has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, OWEN DWYER

133. Plaintiffs repeat, reiterate and reallege each and every allegation with the same force and effect as

though each were fully set forth at length herein

134. That at all dates and times hereinafter mentioned the CITY OF NEW YORK and "NYPD" were charged with the duty to perform their job functions in a reasonably safe manner.

135. That at all dates and times hereinafter mentioned the CITY OF NEW YORK and "NYPD" instructed and educated their law enforcement personnel on how to perform their job functions.

136. That at all dates and times hereinafter mentioned Sargent ALAN CHAU, police officer MIGUEL VANBRANKLE as well as officers "JOHN DOE" and "JANE DOE" of the 67th pct did not perform their job duties in a reasonable same manner.

137. That at all dates and times hereinafter mentioned the CITY OF NEW YORK and "NYPD" ,Sargent ALAN CHAU, police officer MIGUEL VANBRANKLE as well as officers "JOHN DOE" and "JANE DOE" of the 67th pct their agents servants and/or employees, including but not limited to were negligent, careless and reckless in the performance of their job duties.

138. That solely by reason of the foregoing the Plaintiff OWEN DWYER has suffered damage and injury which exceeds the jurisdictional limitations of all lower Courts.

WHEREFORE, Plaintiff KENYATTA MORRIS demand judgment against the Defendants as follows:

(A) KENYATTA MORRIS demands judgment against Defendants on the First Cause of Action in a sum which exceeds the jurisdictional limitations of this Court;

(B) KENYATTA MORRIS demands judgment against Defendants on the Second Cause of Action in a sum which exceeds the jurisdictional limitations of this Court;

(C) KENYATTA MORRIS demands judgment against Defendants on the Third Cause of Action in a sum which exceeds the jurisdictional limitations of this Court;

(D) KENYATTA MORRIS demands judgment against Defendants on the Fourth Cause of Action in a sum which exceeds the jurisdictional limitations of this Court;

Plaintiff KURT CHANG demand judgment against the Defendants as follows:

(E) KURT CHANG demands judgment against Defendants on the First Cause of Action in a sum which exceeds the jurisdictional

limitations of this Court;

(F) KURT CHANG demands judgment
against Defendants on the Second Cause of
Action in a sum which exceeds the jurisdictional
limitations of this Court;

(G) KURT CHANG demands judgment
against Defendants on the Third Cause of
Action in a sum which exceeds the jurisdictional
limitations of this Court;

(H) KURT CHANG demands judgment
against Defendants on the Fourth Cause of
Action in a sum which exceeds the jurisdictional
limitations of this Court;

Plaintiff OWEN DWYER demand judgment against the
Defendants as follows:

(I) OWEN DWYER demands judgment
against Defendants on the First Cause of
Action in a sum which exceeds the jurisdictional
limitations of this Court;

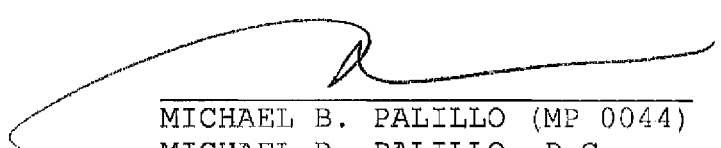
(J) OWEN DWYER demands judgment
against Defendants on the Second Cause of
Action in a sum which exceeds the jurisdictional
limitations of this Court;

(K) OWEN DWYER demands judgment
against Defendants on the Third Cause of
Action in a sum which exceeds the jurisdictional
limitations of this Court;

(L) OWEN DWYER demands judgment
against Defendants on the Fourth Cause of
Action in a sum which exceeds the jurisdictional
limitations of this Court;

(M) Together with the costs and
disbursements of this action, and for such
other and further relief as to this Court
deems just proper and equitable.

Dated: New York, New York
February 21, 2019



MICHAEL B. PALILLO (MP 0044)
MICHAEL B. PALILLO, P.C.
Attorney for Plaintiff
277 Broadway, Suite 501
New York, NY 10007
(212) 608-8959

Michael B. Palillo, an attorney duly admitted to practice law in the Courts of the State of New York affirms the following under penalties of perjury:

1. I am the attorney for the Plaintiff(s) in the above captioned matter. I have read the foregoing Summons and Complaint and know the contents thereof; the same is true to my knowledge, except as to matters therein stated to be alleged upon information and belief, and as to those matters I believe it to be true based on a review of the files maintained in this office and conversations had with the Plaintiff(s). The reason why this verification is made by the undersigned attorney rather than the Plaintiff(s) is that the Plaintiff(s) do/does not reside in the County where I maintain my office for the practice of law.

Dated: February 21, 2019
New York, New York



Michael B. Palillo

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No

KENYATTA MORRIS, KURT CHANGE and
OWEN DWYER,

Plaintiffs,

-against-

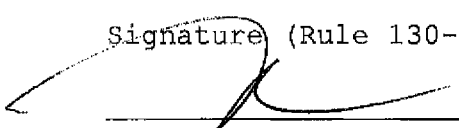
THE CITY OF NEW YORK, SARGENT ALAN CHAU
P.O. MIGUEL VANBRANKLE, AND UNIDENTIFIED
OFFICERS "JOHN DOES" and "JANE DOES" 1-15"
NAMES FICTITIOUS TRUE NAMES UNKNOWN INTENDED
TO DESIGNATE POLICE OFFICERS/DETECTIVES OF
THE 67TH COMMAND AT TIMES AND PLACES ALLEGED,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

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Signature (Rule 130-1.1-a)


Print name beneath

Michael B. Paillllo